

PIEDMONT CASUALTY & SURETY COMPANY
Construction Casualty Division
1900 Rexford Road, Suite 700, Charlotte, NC 28211 | NAIC No. 30518

**COMMERCIAL GENERAL LIABILITY COVERAGE PART
DECLARATIONS**

POLICY NUMBER: GL-5529-41836
POLICY PERIOD: From 04/01/2025 to 04/01/2026 at 12:01 A.M. Standard Time at the mailing address shown
RENEWAL OF: GL-5529-41835
COVERAGE FORM: PCS-CGL 001 (12-24) Commercial General Liability Coverage Form - OCCURRENCE

NAMED INSURED: Vanterra Construction Group, LLC
and the following additional named insureds:
 Vanterra Interiors, LLC
 Vanterra Site Development, LLC
 VCG Equipment Holdings, LLC

MAILING ADDRESS: 8815 Nations Ford Road
Charlotte, NC 28217

FORM OF BUSINESS: Limited Liability Company

BUSINESS DESCRIPTION: General contractor - commercial, multifamily and mixed-use construction; new construction and renovation. Self-performs concrete, carpentry and general conditions; subcontracts MEP, roofing, glazing, sitework and vertical transportation.

LICENCES: NC Unlimited Building Licence No. 71204; SC Group 5 Licence No. G118442; GA General Contractor Licence No. GCC0006713

PRODUCER: Ashcombe Vail Commercial Insurance Services
Producer Code NC-3312
Broker Reference: AV/GL/2025/5529
201 South College Street, Suite 2100, Charlotte, NC 28244
Producer: Gerald Nwosu-Fitzgerald | (704) 555-0731 | gnwosu@ashcombevail.example

LIMITS OF INSURANCE

General Aggregate Limit (other than Products-Completed Operations)	\$ 2,000,000
Products-Completed Operations Aggregate Limit	\$ 2,000,000
Personal and Advertising Injury Limit (any one person or organization)	\$ 1,000,000
Each Occurrence Limit	\$ 1,000,000
Damage To Premises Rented To You (any one premises)	\$ 300,000
Medical Expense Limit (any one person)	\$ 10,000

AGGREGATE LIMITS APPLY PER PROJECT (End. PCS-AGG 220, Designated Construction Project(s) General Aggregate Limit). Each designated project below carries a separate General Aggregate.

Designated Projects (End. PCS-AGG 220 Schedule):

- P-1 Rivergate Commons Phase II, 2650 Rivergate Parkway, Charlotte, NC 28273
- P-2 Halston Row Townhomes, 1120 Berryhill Road, Charlotte, NC 28208
- P-3 Sable Creek Medical Office Building, 4405 Sable Creek Drive, Fort Mill, SC 29715
- P-4 Vanterra Corporate Office Fit-Out, 8815 Nations Ford Road, Charlotte, NC 28217

DEDUCTIBLE / SELF-INSURED RETENTION

Bodily Injury and Property Damage Liability - Deductible, per CLAIM,
applicable to damages and to allocated loss adjustment expense (ALAE) \$ 25,000
(End. PCS-DED 240, Deductible Liability Insurance - Claim Basis, ALAE included within the deductible.)

PREMIUM COMPUTATION - CLASSIFICATION SCHEDULE

Class Code	Classification	Basis	Exposure	Rate	Premium
91580	Contractors - subcontracted work - in connection with construction, reconstruction, repair or erection of buildings	Cost of Sub work	\$ 84,600,000	0.4820	\$ 407,772
91340	Carpentry - construction of residential property not exceeding three stories	Payroll	\$ 4,180,000	3.9100	\$ 163,438

98305	Concrete construction - foundations	Payroll	\$ 2,940,000	5.2600	\$ 154,644
91585	Contractors - executive supervisors	Each	12 supervisors	1,120	\$ 13,440
61226	Buildings or premises - office - own occupancy	Area	18,400 sq ft	0.0940	\$ 1,730

Estimated Annual Advance Premium (subject to audit)				\$	740,024
Terrorism Premium (TRIA accepted)				\$	6,180
Minimum Premium				\$	592,019
Audit Period: Annual. Premium is subject to audit of payroll and subcontract cost records.					

COVERAGES PROVIDED

COVERAGE A - BODILY INJURY AND PROPERTY DAMAGE LIABILITY

We will pay those sums that the insured becomes legally obligated to pay as damages because of "bodily injury" or "property damage" to which this insurance applies, caused by an "occurrence" that takes place in the "coverage territory" during the policy period, provided that prior to the policy period no insured and no employee authorised to give or receive notice of an occurrence knew that the bodily injury or property damage had occurred, in whole or in part. We have the right and duty to defend any "suit" seeking such damages, and our duty to defend ends when we have used up the applicable limit in the payment of judgments or settlements.

COVERAGE B - PERSONAL AND ADVERTISING INJURY LIABILITY

We will pay those sums the insured becomes legally obligated to pay as damages because of "personal and advertising injury" caused by an offense arising out of the insured's business, committed in the coverage territory during the policy period.

COVERAGE C - MEDICAL PAYMENTS

We will pay medical expenses for "bodily injury" caused by an accident on premises the insured owns or rents, on ways next to those premises, or because of the insured's operations, provided the expenses are incurred and reported within one year of the accident date, regardless of fault.

SUPPLEMENTARY PAYMENTS - in addition to the limits: all expenses we incur; up to \$ 2,500 for the cost of bail bonds; the cost of bonds to release attachments; reasonable expenses incurred by the insured at our request, including actual loss of earnings up to \$ 500 a day; all court costs taxed against the insured; pre-judgment and post-judgment interest.

EXCLUSIONS - COVERAGE A (abridged; refer to the coverage form)

- a. Expected or intended injury.
- b. Contractual liability, except liability assumed in an "insured contract" where the bodily injury or property damage occurs subsequent to the execution of the contract.
- c. Liquor liability.
- d. Workers compensation and similar laws.
- e. Employer's liability - bodily injury to an "employee" arising out of and in the course of employment, including consequential injury to a spouse, child, parent or sibling.
- f. Pollution - bodily injury or property damage arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants" at or from any premises, site or location on which any insured or any contractor or subcontractor working for any insured is performing operations, including operations to test for, monitor, clean up, remove, contain, treat, detoxify or neutralise pollutants. See also End. PCS-SIL 425 (Silica and Silica Dust Exclusion) and End. PCS-MOLD 430 (Fungi, Mould and Microbial Matter Exclusion - Absolute).
- g. Aircraft, auto or watercraft owned or operated by or rented or loaned to any insured.
- h. Mobile equipment used in any prearranged racing, speed, demolition or stunting activity.
- i. War.
- j. Damage to property:
 - (1) owned, rented or occupied by the insured, including costs to repair, replace or restore;
 - (2) premises the insured sells, gives away or abandons, if arising out of those premises;
 - (3) property loaned to the insured;
 - (4) personal property in the care, custody or control of the insured;
 - (5) that particular part of real property on which the insured or any contractor or subcontractor working directly or indirectly on the insured's behalf is performing operations, if the property damage arises out of those operations; and
 - (6) that particular part of any property that must be restored, repaired or replaced because "your work" was incorrectly performed on it.

Paragraphs (3), (4), (5) and (6) do not apply to liability assumed under a sidetrack agreement, and paragraph (6) does not apply to property damage included in the "products-completed operations hazard".
- k. Damage to "your product" arising out of it or any part of it.
- l. Damage to "your work" arising out of it or any part of it and included in the "products-completed operations hazard". This exclusion does not apply if the damaged work, or the work out of which the

- damage arises, was performed on the insured's behalf by a SUBCONTRACTOR.
- m. Damage to impaired property or property not physically injured, arising out of a defect, deficiency, inadequacy or dangerous condition in "your product" or "your work", or a delay or failure to perform a contract in accordance with its terms.
 - n. Recall of products, work or impaired property.
 - o. Personal and advertising injury.
 - p. Electronic data.
 - q. Distribution of material in violation of statutes (TCPA, CAN-SPAM, FCRA and similar).
 - r. Employment-related practices (End. PCS-EPL 415).
 - s. Professional liability - bodily injury, property damage or personal injury arising out of the rendering of or failure to render any professional or design service, including architectural, engineering, surveying, inspection, means-and-methods engineering, and construction management services (End. PCS-PROF 420). Coverage for "means and methods" incidental to the insured's own construction operations is written back to the extent stated in that endorsement.
 - t. Subsidence, earth movement, settling, slipping, sinking, shifting, expansion or contraction of earth, soil or land, however caused, where the insured performed grading, excavation, filling, compaction, shoring, underpinning or earthwork (End. PCS-SUB 435, Earth Movement and Subsidence Exclusion).
 - u. Residential construction - bodily injury or property damage arising out of new construction of any single family dwelling, townhome, condominium or attached residential structure of four (4) units or fewer, other than the designated project P-2 which is specifically scheduled and covered (End. PCS-RES 440, Residential Construction Exclusion with Scheduled Project Exception).
 - v. Communicable disease (End. PCS-CD 445).
 - w. Cyber and data breach liability (End. PCS-CYB 450).
 - x. Exterior insulation and finish systems (EIFS) - property damage arising out of the design, application or removal of EIFS, other than as an accent band of not more than 10% of the exterior wall surface (End. PCS-EIFS 455).

ENDORSEMENTS ATTACHED

PCS-CGL 001 (12-24) Commercial General Liability Coverage Form - Occurrence
 PCS-AGG 220 (12-24) Designated Construction Project(s) General Aggregate Limit
 PCS-DED 240 (12-24) Deductible Liability Insurance - Per Claim, ALAE Included
 PCS-AI 300 (12-24) Additional Insured - Owners, Lessees or Contractors - Scheduled Person or Organization (ongoing operations, equivalent scope to CG 20 10)
 PCS-AI 305 (12-24) Additional Insured - Owners, Lessees or Contractors - Completed Operations (equivalent scope to CG 20 37)
 PCS-AI 310 (12-24) Additional Insured - Automatic Status When Required in a Written Construction Agreement Executed Prior to Loss
 PCS-PRI 315 (12-24) Primary and Non-Contributory - Other Insurance Condition, where required by written contract executed before the loss
 PCS-WOS 320 (12-24) Waiver of Transfer of Rights of Recovery Against Others (Blanket, where required by written contract executed before the loss)
 PCS-NOC 325 (12-24) Notice of Cancellation to Scheduled Certificate Holders - 30 days (10 days non-payment)
 PCS-SUBW 330 (12-24) Subcontractor Insurance Requirements Condition and Warranty
 PCS-PROF 420 (12-24) Professional Services Exclusion with Means and Methods Write-Back
 PCS-SIL 425 (12-24) Silica and Silica Dust Exclusion
 PCS-MOLD 430 (12-24) Fungi, Mould, Mildew and Microbial Matter Exclusion - Absolute
 PCS-SUB 435 (12-24) Earth Movement and Subsidence Exclusion
 PCS-RES 440 (12-24) Residential Construction Exclusion with Scheduled Project Exception (P-2)
 PCS-CD 445 (12-24) Communicable Disease Exclusion
 PCS-CYB 450 (12-24) Access or Disclosure of Confidential Information and Data-Related Liability Exclusion
 PCS-EIFS 455 (12-24) Exterior Insulation and Finish Systems Exclusion
 PCS-EPL 415 (12-24) Employment-Related Practices Exclusion
 PCS-CRANE 460 (12-24) Crane, Hoisting and Rigging Operations Condition - Certified Operator Warranty
 PCS-NC STAT (03-25) North Carolina Changes
 PCS-TRIA 900 (01-21) Terrorism Risk Insurance Act - Coverage ACCEPTED

SCHEDULED ADDITIONAL INSUREDS (End. PCS-AI 300 and PCS-AI 305)

1. Rivergate Development Partners, LLC - ongoing and completed operations, project P-1 (Rivergate Commons Phase II, 2650 Rivergate Parkway, Charlotte, NC 28273)
Primary and non-contributory; waiver of subrogation applies.
2. Carolina Piedmont Construction Finance, LLC - ongoing operations only, project P-1
3. Halston Row Owner, LLC - ongoing and completed operations, project P-2
4. Sable Creek Medical Properties, LLC and Palmetto Health Realty Trust - ongoing and completed operations, project P-3
5. City of Charlotte - ongoing operations, work within the public right of way, project P-1
6. Any person or organization where required by a written construction agreement executed prior to the

occurrence, per End. PCS-AI 310 (automatic status).

SUBCONTRACTOR INSURANCE WARRANTY (End. PCS-SUBW 330)

It is a condition of this insurance that the Named Insured shall, before permitting any subcontractor of any tier to commence work:

- (a) obtain a written subcontract agreement containing an indemnity in favour of the Named Insured and the project owner, and requiring the subcontractor to name them as additional insureds on a primary and non-contributory basis for both ongoing and completed operations;
- (b) obtain and retain a certificate of insurance evidencing commercial general liability limits of not less than \$ 1,000,000 each occurrence / \$ 2,000,000 aggregate, automobile liability of \$ 1,000,000, and workers compensation with employer's liability of \$ 1,000,000, from insurers rated A- VII or better by AM Best;
- (c) obtain a waiver of subrogation in favour of the Named Insured and the owner.

Where the Named Insured fails to comply, the per-claim deductible applicable to any claim arising out of that subcontractor's work is increased to \$ 250,000.

CONDITIONS AND CLAIM REPORTING REQUIREMENTS

- 1. DUTIES IN THE EVENT OF OCCURRENCE, OFFENSE, CLAIM OR SUIT. The insured must see to it that we are notified as soon as practicable of an "occurrence" or an offense which may result in a claim. Notice should include how, when and where the occurrence took place, the names and addresses of any injured persons and witnesses, and the nature and location of any injury or damage.
Piedmont Casualty & Surety - Construction Liability Claims
gl.claims@piedmontcasualty.example | (800) 555-0755 (24 hour)
Fax: (704) 555-0756 | Portal: report.piedmontcasualty.example
- 2. If a claim or "suit" is received by any insured, the insured must immediately record the specifics and the date received, notify us as soon as practicable, and forward all legal papers to us.
- 3. The insured must cooperate with us in the investigation and defense, must not voluntarily make a payment, assume any obligation or incur any expense other than for first aid, and must take all reasonable steps to preserve evidence, including photographs, the site condition, tools, equipment, scaffolding, guardrails, fall protection and any failed component.
- 4. IMMEDIATE TELEPHONE NOTICE is required for any occurrence involving: a fatality; an amputation, spinal or head injury, or hospitalisation of any person; a collapse of any structure, formwork or excavation; a crane, rigging or dropped-load incident; damage to adjacent or third-party property; or the arrival of OSHA or any regulatory authority at the site.
- 5. OTHER INSURANCE. This insurance is excess over any builders risk, installation floater, property or inland marine coverage, and over any other primary insurance available to the insured covering the same loss, except where this policy is required to be primary and non-contributory by a written contract executed prior to the occurrence.
- 6. PREMIUM AUDIT. The premium is an advance premium only. We will compute the final premium by audit of the insured's payroll and subcontract cost records within twelve months of the end of the policy period.
- 7. REPRESENTATIONS, SEPARATION OF INSURED, LEGAL ACTION AGAINST US and TRANSFER OF RIGHTS OF RECOVERY apply as stated in the coverage form.

Countersigned at Charlotte, North Carolina.

Authorized Representative

Vice President, Construction Casualty